

By email only to: office@southwolds.notts.sch.uk

Reference number: IC-91396-R8K2

8 July 2021

Dear Sir/Madam

We are writing to your organisation because we have received a complaint from Mr Paul Dring about the way your organisation has handled his personal information.

The ICO's role

Part of our role is to consider complaints from individuals who believe their data protection rights have been infringed.

Concerns raised with us.

Mr Dring's complaint is about the way personal information related to him and his family has been handled by South Wolds Academy & Sixth Form. His complaints are:

- 1- The South Wolds Academy & Sixth Form inappropriately disclosed his personal information in the Governors meeting of 9 February 2021.
- 2- Data breach involving the disclosure of Mr Dring's and others' email addresses on 24 February 2021.
- 3- Inaccurate personal information being processed by the school.
- 4- Inappropriate disclosure of personal information in the school's SAR response of 29 May 2021.

Our view

We have considered the information available in relation to this complaint and we are of the view that your organisation **has not** complied with its data protection obligations. Our view regarding each of Mr Dring's complaints are:

- 1- The school has admitted that the Clerk of the meeting of Governors on 9 February 2021 did inappropriately disclose personal information related to

Mr Dring and his family. This is a breach of GDPR's Article 5(1)(f) 'integrity and confidentiality'

- 2- Based on the available information on 12 March 2021 the School informed Mr Dring that his personal email address and a number of others' have been shared in a Zoom meeting invitation. This is also a breach of Article 5(1)(f) 'integrity and confidentiality'.
- 3- Mr Dring raised a concern regarding the accuracy of his family's personal information you have processed. Based on the letter dated 25 May 2021 from the school's deputy head, the school does not agree with this concern. With the available information we do not have enough evidence to determine if your organisation has infringed the regulation on this point.
- 4- Based on the available information there appears to be third party personal information included in the school's response to Mr Dring's SAR response sent to him on 29 May 2021. On 27 June 2021 Mr Dring wrote to the school about this matter. We do not have your response and consequently do not have enough evidence to determine if the school has infringed the regulation on this point as well.

Action required

We now expect your organisation to take the following steps to rectify this and improve its information rights practice:

- Review Mr Dring's accuracy concern and respond accordingly.
- Respond to Mr Dring's concern regarding the disclosure of third party information in your SAR response.
- Work with Mr Dring to resolve any outstanding data protection issue.

We also believe that South Wolds Academy & Sixth Form would benefit from devising an action plan explaining the steps it intends to take to prevent this situation from happening again and improving information rights more widely. The steps in the plan should be sufficient to convince us that your organisation is taking data protection responsibilities more seriously.

We would be grateful to receive your organisations action plan within the next 14 calendar days.

Thank you for your cooperation in this matter.

Yours sincerely,

Javad Chakmagi
Case Officer
Information Commissioner's Office
Direct dial: 0330 414 6644

ICO Statement

You should be aware that the Information Commissioner often receives request for copies of the letters we send and receive when dealing with casework. Not only are we obliged to deal with these in accordance with the access provisions of the data protection framework and the Freedom of Information Act 2000, it is in the public interest that we are open and transparent and accountable for the work that we do.

For information about what we do with personal data see our privacy notice at www.ico.org.uk/privacy-notice